

25SMCV05469 25SMCV05469

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court agrees with the plaintiff that the defendant's papers are unusual. The motion is a single handwritten page. And the court is aware of plaintiff's argument that defendant did the same thing in the UD case—allowed default to be taken against him and then moved to set it aside. But having said that, the most important issue to the court is prejudice given the very strong policy favoring resolution on the merits. Absent actual prejudice, the court's inclination is to GRANT the motion and set aside the default. Because the complaint is unverified, the court will treat the answer as a general denial and deem it filed.

Defendant is warned, though, that even though he is self-represented, under the law he is still required to follow the procedures that apply to everyone who comes before this court—represented or not. That might not be easy, but it is required. The court can and will apply the law in a fair manner, but the court will and must apply the law as written, and that includes the procedures. If defendant cannot find counsel, he is, of course, entitled to represent himself. However, the law still applies to him. Nor can the court advise him on what to do. The court is the neutral judge here. Think of an umpire in baseball. The batter would not ask the umpire for advice, and the umpire would not give it. So here. The court is not on his side or plaintiff's side. The court cannot advise people on what law to follow or how to do things that must be done. If defendant is unsure which form

or format to use, the court will be unable to help him. The court notes that there are sources on the internet that could help, as well as other legal aid organizations that might be able to help. But it will be up to the defendant to abide by the requirements that the law imposes. Of course, that applies to plaintiff as well. In any event, the court's inclination is to GRANT the motion and hold a CMC today. In advance of the CMC, the court warns the parties that they are not going to like the trial date. Sadly, there are 1300 cases on the court's docket, and all of them want trial dates. That has forced the court to set trial dates far, far in advance—a little less than 2 years from now. The court regrets this, but the court can only try one case at a time, so the cases are taken in the order they are set unless they are entitled to priority based on a law passed by the Legislature.